

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
MONDAY, JUNE 22, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**CAPITAL ONE, N.A. v. CALVO
Case No. CL24-09499**

Motion to Vacate Dismissal and Enter Judgment filed by Plaintiff

TENTATIVE RULING

The Court finds that service by mail of plaintiff's motion to vacate the dismissal and enter judgment is inadequate. Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action, such as defendant Calvo in the present case, is typically required to be made in the same manner required for service of summons and complaint. (See, e.g., an application for writ of attachment under C.C.P. §482.070(d) and an application for writ of possession under C.C.P. §512.030(b)). Plaintiff did not serve the motion in this manner.

Therefore, the Court continues plaintiff's motion to July 24, 2026, at 9:00 a.m. in Department 3 to give plaintiff an opportunity to properly serve the motion at least 16 days before the hearing and to give defendant an opportunity to either defend the motion or pay the remaining amount owed under the stipulated agreement to avoid entry of a judgment against her.

The Court notes that plaintiff requested costs be included in the judgment. However, costs may be awarded only upon the filing of a memorandum of costs under CRC 3.1700 *after* judgment is entered.

Join ZoomGov Meeting

<https://www.zoomgov.com/j/1602210102?pwd=emlhR29SczExam56NFFqWHFvSitmZz09>

Meeting ID: 160 221 0102

Passcode: 650928

One tap mobile

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